

of a government intrusion, our cases uniformly hold that the Fourth Amendment prohibition against a general search requires that warrants contain descriptions reflecting "the most scrupulous exactitude . . .," *Stanford v. Texas*, 379 U. S. 476, 485 (1965). Those cases proscribe general language in a warrant—or a statute—of "indiscriminate sweep . . ." *Id.*, at 486. Title I, commanding seizure followed by permanent control of all materials having "historical or commemorative value," evidences the "indiscriminate sweep" we have long denounced. This "broad broom" statute provides virtually no standard at all to guide the Government agents combing through the papers; the agents are left to roam at large through confidential materials, something to which no other President and no Member of Congress or of the Judicial Branch has been subjected.

The Court, while recognizing that Government agents will necessarily be reviewing the most private kinds of communications covering a period of five and one-half years, tells us that *Stanford* is inapposite. Several reasons are given. The Court suggests that, unlike the instant case, the seizure in *Stanford* included vast quantities of materials unrelated to any legitimate government objective; in addition, the *Stanford* intrusion constituted an invasion of the home in connection with a criminal investigation. That last consideration relied on by the Court can be disposed of quickly, for by its terms, just as in *Stanford*, Title I commands seizure and review of papers from appellant's *private residences* within and outside Washington, D. C., § 101 (a), for the purpose, among others, of criminal proceedings brought by the Special Prosecutor, § 102 (b), and to make the materials available more broadly "for use in judicial proceedings." § 104 (a)(2). Title I is not needed for this purpose, since a narrowly defined subpoena can accomplish those purposes under *United States v. Nixon*. Title I is in effect a "legislative warrant" reminiscent of the odious general warrants of the colonial era.